

CV-26-004164 CHAUHAN, HARPINDER SINGH vs GILL, HARBANS SINGH - Plaintiff Harpinder Singh Chauhan's Motion for a Preliminary Injunction - DENIED.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: Plaintiff Harpinder Singh Chauhan's motion for preliminary injunction is DENIED for the reasons set forth below. A preliminary injunction requires consideration of two interrelated factors: the likelihood the moving party will prevail on the merits and the comparative interim harm likely to result from granting or denying relief. (White v. Davis (2003) 30 Cal.4th 528, 554; Butt v. State of California (1992) 4 Cal.4th 668, 677–678.) Plaintiff has not shown a sufficiently strong probability of prevailing on the causes of action alleged in the complaint. All of Plaintiff's claims depend on his contention that the July 2021 conveyance was temporary or that Defendants were obligated to restore his one-half ownership interest. The present record includes an October 2020 resolution reflecting a sale, a July 2021 Assignment Agreement providing for transfer of Plaintiff's interest for \$500,000, a recorded Grant Deed transferring the Property to H & H Entities LLC, and an escrow settlement statement identifying the \$400,000 closing disbursement as a buyout. Defendants also submit evidence that Plaintiff stated shortly after closing that he had sold his interest. Plaintiff's evidence of continued onsite management, payment of a utility bill, identification on a business card, monthly payments, and third-party perceptions of ownership supports a competing inference but does not establish a strong probability of overcoming the written and recorded evidence. Plaintiff also has not shown that the balance of interim harms warrants the broad restraint requested. Although the Property was refinanced in July 2026, the evidence does not identify a pending sale, transfer, lease, or additional encumbrance. Plaintiff's claimed interest is also the subject of pleaded remedies for quiet title, partition, accounting, and damages, and a lis pendens provides notice of the title dispute. The proposed injunction would impose a new restriction on H & H's recorded ownership and management of an operating commercial property rather than preserve an undisputed precontroversy condition. Plaintiff's request for judicial notice and Defendants' request for judicial notice are GRANTED as to the existence, filing, recording, and legal effect of the identified court records and recorded instruments. The Court does not take judicial notice of the truth of reasonably disputable factual assertions or hearsay contained in those documents. The denial is without prejudice to a later application based on materially changed circumstances or competent evidence of an actual threatened transfer, sale, or further encumbrance. The following are the tentative rulings for cases calendared before Commissioner Richard D. Moths in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA: ***There are no Tentative Rulings for Department 19*** Administrative ADA Accommodations Locations and Contact Info Privacy Policy Attorney Resources Judicial Council Forms Court Calendars California Court Self-Help Center California Judicial Branch Public Resources Court Holidays Stanislaus County Employee Access Outlook Share Point Superior Court of California County of Stanislaus Judicial Branch of California Privacy Terms of Use © 2026

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CV-26-004164 - CHAUHAN, HARPINDER SINGH vs GILL, HARBANS SINGH - Plaintiff Harpinder Singh Chauhan's Motion for a Preliminary Injunction - DENIED.

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The following are the tentative rulings for cases calendared before Commissioner Richard D. Moths in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA:

There are no Tentative Rulings for Department 19

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